ProStruct Engineering, Inc. | Corp. Address: 450 Folsom Street #1502, San Francisco, CA 94105
inquiries@prostructengineering.com | (844) 750-0773 | https:prostructengineering.com/

November 2, 2026

Brian Russell
8618 E Eastman Ave, Denver, CO, 80231
brianrobertrussell@gmail.com
17202078094

Re: Professional Services Agreement for an Onsite Evaluation

Dear Brian Russell,

Thank you for allowing ProStruct Engineering, Inc. (the "Engineer") the opportunity to provide this proposal for engineering services for the project located at 8618 E Eastman Ave, Denver, CO, 80231 (the "Project"). Upon execution by Brian Russell ("Client"), this document, together with the enclosed Terms and Conditions (collectively the "Agreement"), will constitute the entire Agreement between the Engineer and the Client relating to the Project. The purpose of this Agreement is to ensure a successful Project based on a clear communication of the scope of services, terms and conditions, and fee schedules under which the Engineer will provide services. This agreement supersedes all prior oral or written negotiations, representations, or agreements, and may only be amended by a written instrument signed by both Client and Engineer.

Project Description

The client is undertaking an on-site evaluation of the property located at 8618 E Eastman Ave - Denver - CO - 80231.

Project Overview
Onsite evaluation to look at Foundation issues and settlement

Engineer's Scope of Work - Basic Services

Engineer shall provide the following services as "Basic Services":

The Engineer shall provide a report with the evaluation details, that may contain photographs and recommendations.
1. Consult with Client and study any report provided by the client in relation to the project.
2. Perform a site visit to obtain the structural survey details pertaining to engineering.
3. Prepare and submit to Client a stamped and signed report that will show the scope, extent and character of structural work and describe such work and the recommendations.
4. On-site engineering reports do not contain any drawings, calculations or engineering details.

Engineer's Scope of Work - Additional Services

Additional services include, but are not limited to, the services described below, and may be provided by Engineer if confirmed in writing by both parties to this Agreement. Additional Services shall be paid for by the Client as provided in this Agreement, in addition to the compensation for Basic Services.

1. Making revisions to the Project Documents when such revisions are: (i) inconsistent with or in addition to approvals or instruction previously given by the Client, including revisions made necessary by adjustments in the Client's program or Project budget; (ii) required by the enactment or revision of codes, laws or regulations subsequent to the preparation of such documents; or due to changes required as a result of the Client's failure to render decisions in a timely manner; or (iii) revisions to the Project Documents required by a public agency that are inconsistent with the prevailing generally accepted interpretation of applicable laws or inconsistent with the public agency's prior interpretations.
2. Providing services required because of significant changes in the Project including, but not limited to, changes in size, quality, complexity, or the Client or their Consultant or Contractor's schedule.
3. Preparing drawings, calculations, or other documentation in connection with Change Orders and Construction Change Directives.
4. Providing services in connection with evaluating substitutions proposed by Contractors and making subsequent revisions to the Project Documents.
5. Providing services made necessary by the termination or default of the Contractor, by major defects or deficiencies in the Work of the Contractor, or by failure of performance of either the Client or a Contractor under a Contract for Construction.
6. Providing services in connection with a public hearing, dispute resolution proceeding or legal proceeding, except where Engineer is party thereto.
7. Providing any other services not otherwise included in this Agreement as Basic Services, or not customarily furnished in accordance with generally accepted practices governing those providing similar services under like circumstances.

Engineer's Fee

Basic Services Fee. Owner shall pay a flat fee of $ 1100 for Engineer's Basic Services, as set forth above.

Payment Schedule. *Full payment of $ 1100* is due upon the signing of this Agreement.

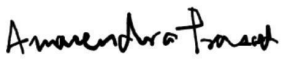
Additional Services. Engineer will provide Additional Services, as defined above, on an hourly fee basis at Engineer's hourly rate at the time the Additional Service is rendered. Engineer's current billing rate is $ 200 per hour.

Licensing & Insurance

As of the date of this agreement Engineer carries professional liability insurance and is licensed to practice engineering in the state in which the Project is located.

IN WITNESS WHEREOF, the parties hereto have caused this Agreement to be executed by and through their respective authorized officers:

ProStruct Engineering, Inc.



Amarendra Prasad P.E
President

PE License# - California - C68517

PE License# - Washington - 24002154

PE License# - Nevada - 032033

PE License# - Utah - 8164145-2202

PE License# - Arizona - 79513

PE License# - Oregon - 104740PE

PE License# - Colorado - 0064386

PE License# - Georgia - 053258

PE License# - Texas - 153880

PE License# - New Mexico - 31090

PE License# - Idaho - 7671684

PE License# - Florida - 105361

Full Name: Brian Russell

Date:

ATTACHMENT A

STANDARD TERMS AND CONDITIONS FOR SERVICES
PROSTRUCT ENGINEERING, INC. ("ENGINEER")

SECTION 1 – GENERAL

1.1 Entire Agreement. These Standard Terms and Conditions, together with the Letter Agreement to which they are attached and any other attachments (collectively, the "Agreement"), constitute the entire and integrated agreement between the Client and ProStruct Engineering, Inc. ("Engineer") concerning the matters covered by the Agreement, and supersede all prior oral or written negotiations, representations, or agreements. Engineer's services are limited to the services described in the Agreement. The Agreement may only be modified in writing executed by the parties hereto. Engineer as referenced herein includes its officers, directors, principals, shareholders, agents, employees, associates, and Consultants.

1.2 Engineer's Obligations. Engineer shall provide or procure for Client the services specified in this Agreement. The services shall be performed in a manner consistent with the skill and care ordinarily provided by Engineers practicing in the same or similar locality under the same or similar circumstances and general conditions. Engineer's services shall be performed as expeditiously as is consistent with the orderly progress of the Project.

1.3 Client's Obligations. Client shall provide timely, complete and accurate information regarding the objectives, schedule, constraints, and existing conditions of the Project site, and provide reasonable access to the Project site. Engineer shall be entitled to rely on the decisions, accuracy, and completeness of the information that Client or others provide on Client's behalf to Engineer. Client agrees to render decisions in a timely manner so as not to delay the orderly and sequential progress of Engineer's services.

Client shall promptly report to Engineer any defects or suspected defects in Engineer's services of which Client becomes aware, so that Engineer may take measures to minimize the consequences of such a defect. Client further agrees to impose a similar notification requirement on all contractors in its contractor's contract and shall require all subcontracts at any level to contain a like requirement. Should legal liability for the defects exist, failure by Client and Client's contractors or subcontractors to notify Engineer shall relieve Engineer of any liability for costs of remedying the defects above the sum such remedy would have cost had prompt notification been given when such defects were first discovered.

SECTION 2 – EXCLUSIONS

2.1 Unforeseen, Latent Or Hidden Conditions. Unforeseen, latent or hidden conditions may not be readily ascertainable regardless of the extent of the investigation. Such conditions may impact the design and necessitate extensive revisions to the design. When services are required to address these conditions, those services shall be deemed Additional Services and shall be subject to the payment terms as set forth in this Agreement. The Engineer is not responsible and will not verify the depth, rebar placement, or size of existing foundations.

2.2 Hazardous Substances. Engineer shall not be responsible for the identification, removal, testing and/or certification of removal relative to any hazardous substance including, but not limited to, PCBs, petroleum, mold infestation, hazardous waste, asbestos, lead, and any other hazardous substances designated as such under applicable laws.

2.3 Non-Warranty Statement. Nothing contained in this Agreement shall be construed to constitute a guarantee, warranty, or assurance either expressed or implied, that Engineer's services will yield or accomplish a specific outcome for this Project. Any verbal opinions made by Engineer are statements of their opinion only based on their judgment and information known to them. Engineer shall be entitled to rely on the accuracy and completeness of any information provided by the Client or by a third party on the Client's behalf.

2.4 Client Is Responsible For Contracting With Third Parties. Client agrees to act as the General Contractor or independently contract and hire a General Contractor and any additional Consultants who may be required to complete the Project. The General Contractor for the project shall enter into agreements with all trades people and Subcontractors. The cost of additional Consultants is not included in this Agreement. The Engineer is not

liable for services provided by third-party professionals hired by the Client, including architects, designers, geotechnical engineers, land surveyors, MEP engineers, general contractors etc.,for work beyond the scope of this Agreement, regardless of any recommendations provided. Additionally, the Engineer is independent of and cannot accept responsibility for the workmanship, safety precautions, and project outcomes of any trades people in connection with this project.

2.5 Client's Other Consultants. If Client retains other professional Consultants to perform portions of the Project, those Consultants shall affix their seals on the appropriate documents prepared by them. The contracts between the Client and Client's Consultants shall require the Consultants to coordinate their drawings and other Instruments of Service with those of Engineer and to advise Engineer of any potential conflict. Review by Engineer of the Consultants' drawings and other Instruments of Service is solely for consistency with Engineer's design for the Project. Engineer shall be entitled to rely upon the technical sufficiency and timely delivery of documents and services furnished by the Client's Consultants, as well as on the computations performed by those Consultants in connection with such documents and services. Engineer shall not be required to review or verify those computations or designs for compliance with applicable laws, statutes, ordinances, building codes, and rules and regulations, or certify completion or payment for the Work designed by the Client's Consultants. Engineer shall not be responsible for checking the quality, accuracy, or completeness of work prepared by the Client's Contractor or Consultants.

2.6 Non-Responsibility For Work Or Services Of Others. Engineer shall not be responsible for any Contractor or Consultant's failure to perform work in accordance with Engineer's design. Engineer shall be responsible for Engineer's negligent acts or omissions, but shall not have control over or charge of, and shall not be responsible for acts or omissions of any Contractor, including the construction means, methods, techniques, sequences or procedures, or for safety precautions and programs in connection with the contractor's work on the Project, nor shall the Engineer be responsible for the Contractor's failure to perform the Work in accordance with the requirements of the design. Engineer also shall not have control over or charge of, and shall not be responsible for, acts or omissions of any of Consultants, or of any other persons or entities performing services for the Project.

2.7 Soil Conditions and Liability. In the event that Engineer or any relevant local authority advises the Client to obtain a soils report or a geotechnical investigation, the provision of services by Engineer shall be contingent upon such recommendation. Without such a report, Engineer shall bear no liability or responsibility for the underlying soil conditions, the adequacy of footings, or any resultant impact on the services provided.

2.8 On-site Evaluation. In the event an on-site evaluation is provided as part of Basic Services, such evaluation excludes considerations of conditions potentially leading to structural deficiencies if unaddressed, is confined to observations of visibly accessible areas, excludes destructive testing, and is not comprehensive of engineering evaluations. The Engineer shall not be physically entering any crawl space due to safety and clearance issues. However, if required, the additional details will be captured using a flashlight, a camera stick, and a mobile camera. Further, it does not extend to non-structural components such as HVAC, electrical, plumbing systems, and does not provide warranties or serve as a substitute for a buyer's pre-purchase inspection.

2.9 Property Insurance Coverage. To the extent damages are covered by property insurance during construction, Client waives all rights against Engineer for such damages.

2.10 Public Agency Approval. Engineer is not responsible for any delays resulting from any public agency or governing authorities' consideration, review, comments or approval of any aspect of the Project. Client acknowledges the approval process by public agencies can be subjective and unpredictable. Revisions to designs required by a public agency that are inconsistent with the prevailing generally accepted interpretation of applicable laws or inconsistent with the public agency's prior interpretations shall be compensated, as Additional Services. It is understood, however, that various codes, laws, ordinances and regulations are subject to varying and sometimes contradictory interpretation. Engineer shall exercise skill and care to provide a design that is consistent with the prevailing, generally accepted interpretation of applicable codes, laws, ordinances, and regulations. Excessive visits to government agencies to gain project approval will be an additional service at the discretion of the Engineer. Permitting and entitlement fees will be the responsibility of the Client.

2.11 Cost Of The Work. Opinions or evaluations of the Client's budget for the cost of Engineer's services or the Project, any preliminary estimate of the

cost, and updated estimates of the cost prepared by Engineer, represent Engineer's judgment. It is recognized, however, that neither Engineer nor the Client have control over the cost of labor, materials, or equipment; any Contractor's methods of determining bid prices; or competitive bidding, market, or negotiating conditions. Accordingly, Engineer cannot and does not warrant or represent that bids or negotiated prices will not vary from the Client's budget or from any estimate prepared or agreed to by Engineer.

2.12 Mutual Waiver Of Consequential And Delay Damages. To the fullest extent permitted by law, and notwithstanding any other provision of this Agreement, the parties shall not be liable to each other, or anyone claiming by, through, or under the parties for any claims for special, incidental, consequential, or delay damages whatsoever, arising out of, resulting from, or in any way related to the Project or this Agreement, from any cause or causes, including, but not limited to loss of rental income or other income, loss of rental expense, loss of use, lost profit, lost financing, lost business and reputation, diminution of value, or economic damages.

SECTION 3 – CHANGES TO THE PROJECT

3.1 Change Orders, Amendments, and Additional Services. Engineer may provide Change Orders, Amendments, and Additional Services beyond the services described in the Agreement upon the Client's written request and written confirmation by Engineer. Engineer will bill for its work relating to any changes on an hourly fee basis. The Change Order may prolong the schedule of progress, and Engineer is not responsible for upholding previously determined Project budgets and timelines, nor liable for any extensions of time as a result of Change Orders.

3.2 Unauthorized Changes to Plans. In the event Client consents to, allows, or authorizes or approves of changes to any plans, specifications or other construction documents, and these changes are not approved in writing by Engineer, Client recognizes that such changes and the results thereof are not the responsibility of Engineer. Therefore, Client agrees to release Engineer from any liability arising from the construction, use or result of such changes. In addition, Client agrees, to the extent permitted by law, to indemnify and hold Engineer harmless from any damage, liability or cost (including reasonable attorneys' fees and costs of defense) arising from such changes.

3.3 Value Engineering. Any value engineering proposals made by the Client, or its representatives, shall be given to Engineer for review, and adequate time will be provided for Engineer and its consultants to respond to those recommendations. If Engineer objects to any recommendations made by Client, it shall state so in writing to Client, along with reasons for the objections. If Client incorporates the changes to the design or to the Contract Documents over Engineer's written objection, Client assumes all risk associated with such value engineering change and, to the fullest extent permitted by law, waives all claims against Engineer and it's consultants from damage, claim, suit, demand, loss, liability or expense (including attorneys fee and defense costs) which arise in connection with or as a result of the incorporation of such design change required by Client.

SECTION 4 – RISK ALLOCATION

4.1 LIMITATION OF LIABILITY. THE CLIENT UNDERSTANDS AND ACKNOWLEDGES THAT THE DESIGN AND CONSTRUCTION PROCESS FOR THIS PROJECT POSES CERTAIN RISKS TO BOTH ENGINEER AND THE CLIENT. THE CLIENT FURTHER UNDERSTANDS AND ACKNOWLEDGES THAT THE AMOUNT OF RISK THAT ENGINEER CAN ACCEPT IS TIED, IN PART, TO THE AMOUNT OF COMPENSATION RECEIVED FOR SERVICES RENDERED. ENGINEER'S FEE FOR THE SERVICES OFFERED IS BASED ON THE CLIENT'S AGREEMENT TO LIMIT ENGINEER'S LIABILITY AS DESCRIBED BELOW. THE CLIENT FURTHER ACKNOWLEDGES THAT WERE IT NOT FOR THIS PROMISE TO LIMIT ENGINEER'S LIABILITY, ENGINEER'S COMPENSATION WOULD NEED TO INCREASE TO ADDRESS THE RISKS POSED BY THIS PROJECT.

THE CLIENT, THEREFORE, ACKNOWLEDGING ITS RIGHT TO DISCUSS THIS PROVISION WITH LEGAL COUNSEL EXPERIENCED IN THE DESIGN AND CONSTRUCTION PROCESS, AS WELL AS OTHER DESIGN PROFESSIONALS, VOLUNTARILY AGREES THAT, TO THE FULLEST EXTENT PERMITTED BY LAW, THE TOTAL LIABILITY OF ENGINEER AND ITS CONSULTANTS AND EMPLOYEES TO THE CLIENT FOR ANY AND ALL INJURIES, CLAIMS, LIABILITIES, LOSSES, COSTS, EXPENSES OR DAMAGES WHATSOEVER ARISING OUT OF OR IN ANY WAY RELATED TO THE PROJECT OR THIS AGREEMENT FROM ANY CAUSE OR CAUSES INCLUDING, BUT NOT LIMITED TO, THE NEGLIGENCE, ERRORS, OMISSIONS OF ENGINEER OR ITS CONSULTANTS

AND EMPLOYEES OR ENGINEER'S BREACH OF CONTRACT, SHALL NOT EXCEED, AT THE TIME THAT ENGINEER AND/OR ITS CONSULTANTS AND EMPLOYEES ARE FOUND TO BE LIABLE, THE TOTAL AMOUNT OF FEES PAID TO ENGINEER UNDER THIS AGREEMENT.

Client's Initials:

4.2 No Personal Liability. Any claims, obligations, liabilities, or causes of action (whether in contract or in tort, in law or in equity, or granted by statute) in any way arising out of this agreement and asserted against Engineer shall be asserted solely against ProStruct Engineering, Inc., and not against any individual director, officer, employee, incorporator, stockholder, affiliate, agent, attorney, or representative of ProStruct Engineering, Inc.

4.3 Insurance. Engineer maintains errors and omissions insurance for claims for negligence, bodily injury, death, or property damage which may arise out of the performance of Engineer's services under this Agreement.

4.4 Indemnification. To the fullest extent permitted by law, Client shall indemnify and hold harmless Engineer, and its consultants, officers, employees, and agents, from and against third-party claims, demands, damages, losses, and expenses, including reasonable attorneys' fees, arising out of or resulting from the Project, to the extent caused by the acts or omissions of the Client, the Contractor, or other consultants or parties engaged by the Client. Client's indemnification obligation shall not apply to the extent such claims, damages, losses, or expenses are caused by the negligence or willful misconduct of Engineer, as determined by a court or other forum of competent jurisdiction. Client shall not be obligated to indemnify Engineer for Engineer's sole negligence or willful misconduct.

Client shall require its contractors to indemnify Engineer (other than for Engineer's negligence) and to name Engineer as an additional insured under the contractor's general liability insurance. Failure to do so shall not, by itself, be deemed a breach of this Agreement, but may affect the allocation of responsibility among the parties.

Client acknowledges that the likelihood of misinterpretation or misimplementation of plans and specifications may increase when the Engineer is not retained to provide construction phase services. Accordingly, if Client elects not to retain Engineer for such services, Client agrees that Engineer shall not be responsible for errors, omissions, or misinterpretations in the construction or implementation of Engineer's instruments of service that are attributable to the actions or omissions of others. To the extent permitted by law, Client shall indemnify and hold harmless Engineer from third-party claims arising from such misinterpretation or misimplementation, except to the extent caused by Engineer's negligence or willful misconduct.

4.5 Limitations on liability and indemnities in this Agreement are business understandings between the parties and shall apply to all the different theories of recovery, including breach of contract or warranty, tort (including negligence), strict or statutory liability. Indemnities will not apply to any losses or damages that have been found by a trier of fact to have been caused by Engineer's willful misconduct. Client and Engineer also agree that Client will not seek damages in excess of the contractually agreed limitations indirectly through suits with other parties who may join Engineer as a third-party defendant.

SECTION 5 – PAYMENT

5.1 Terms Of Payment. Invoices accounting for Basic Services Fees, and any applicable Additional Services Fees and Reimbursable Expenses, will be issued upon completion of a service phase. Payment is due within seven days of receipt of the invoice. A late charge of 1% per month will be added to the unpaid balance if the invoice remains paid more than 30 days following delivery; and Client will be responsible for any collection fees incurred by Engineer. Failure to pay an invoice timely may result in a suspension of services, as set forth below.

5.2 Payments Not Contingent. Payments to Engineer shall not be withheld, postponed or made contingent on the construction, completion or success of the Project or upon receipt by Client of offsetting reimbursement or credit from other parties who may have caused Additional Services or expenses. No withholdings, deductions or offsets shall be made from Engineer's compensation for any reason unless Engineer has been found to be legally liable for such amounts.

5.3 Consequences Of Non-Payment. If the Client fails to make payments to Engineer in accordance with this Agreement, such failure shall be considered substantial non-performance and cause for termination and pursuit of legal remedies, or at Engineer's option, cause for suspension of performance of services under this Agreement.

If Engineer elects to suspend services, Engineer shall give seven (7) days' written notice to the Client before suspending services. In the event of a suspension of services, Engineer shall have no liability to the Client for delay or damage caused by such suspension of services. Before resuming services, Engineer shall be paid all sums due prior to suspension and any expenses incurred in the interruption and resumption of Engineer's services. Engineer's fees for the remaining services and the time schedules shall be equitably adjusted.

5.4 Collection Fees. In the event of non-payment, Client agrees to hold financial responsibility for all incurred charges and interest fees as set forth by the collection agency selected to pursue payments.

5.5 Cancellation & Refund Policy. If the client cancels this agreement before engineering or onsite work begins, a $ 500 setup fee applies. Once work has started, the deposit becomes non-refundable. If cancellation occurs after further project progress, the final invoice issued by the Engineer remains payable.

SECTION 6 – SUSPENSION AND TERMINATION

6.1 Suspension Of The Project By Client Non-activity on the Project or non-communication by the Client in response to communication by Engineer for thirty (30) consecutive days constitutes intent of Project suspension. If the Project is suspended by the Client, Engineer shall be compensated for services performed prior to notice of suspension. If the Project is resumed, Engineer shall be compensated for expenses incurred in the interruption and resumption of Engineer's services before Engineer is obligated to recommence work. Engineer's fees for the remaining services and the time schedules shall be equitably adjusted.

If the Project is suspended or Engineer's services are suspended for more than sixty (60) days, Engineer may terminate this Agreement by giving not less than seven (7) days' written notice.

6.2 Termination For Cause. Either party may terminate this Agreement with not less than seven (7) days' written notice should either party fail substantially to perform in accordance with the terms of this Agreement through no fault of the party initiating the termination. If the nature of the non-performance requires additional time to cure, the party will be deemed to have substantially performed if it commenced to cure within the seven (7) day period and thereafter diligently proceeds to cure.

6.3 Termination For Convenience. The Client may terminate this Agreement with not less than seven (7) days' written notice to the receiving party for convenience and without cause.

6.4 Payment After Termination. In the event of a termination by Client, Engineer shall be compensated for any services, reimbursable expenses, travel expenses, or other expenses incurred prior to the date of termination.

SECTION 7 – USE OF DOCUMENTS

7.1 All documents prepared or furnished by Engineer pursuant to this Agreement, and all derivative works based thereon, are instruments of Engineer's service. All Instruments of Service or other work product of the Engineer remains the property of the Engineer; The Engineer retains all reserved rights therein, including copyrights. Provided the Client substantially performs its obligations under the Agreement, including prompt payment of all sums when due, Engineer grants to the Client a non-exclusive, non-transferable license to use Engineer's Instruments of Service solely and exclusively for the purpose of constructing, occupying, and maintaining this specific Project. The foregoing license includes granting the Contractor the right to prepare documents for the Project. In the event the Engineer terminates this Agreement for cause, the license granted in this section shall terminate.

7.2 Except for the licenses granted in this Article, no other license or right shall be deemed granted or implied under this Agreement. The Client shall not assign, delegate, sublicense, pledge or otherwise transfer any license granted herein to another party without the prior written agreement of the Engineer. Any unauthorized use of the Instruments of Service shall be at the Client's sole risk and without liability to the Engineer and the Engineer's consultants.

7.3 In the event the Client uses the Instruments of Service without retaining Engineer, or if the Client transfers the Instruments of Service to any party without first obtaining Engineer's express written consent, the Client hereby releases Engineer from any and all claims or causes of action arising from such uses or transfer. The Client, to the full extent permitted by law, further agrees to indemnify and hold harmless Engineer and its consultants from all costs and expenses, including the cost of defense, related to any and all claims or causes of action asserted by any third person or entity to the extent such costs and

expenses arise from the Client's use or transfer of the Instruments of Service under this Section.

SECTION 8 – DISPUTE RESOLUTION

8.1 Good Faith Negotiation. Engineer and Client agree to negotiate any claims or disputes arising out of or related to this Agreement in good faith prior to exercising any other provision of this section.

8.2 Mediation. If a claim or dispute between Engineer and Client cannot be resolved within thirty (30) days by good faith negotiations, Engineer and Client agree to submit the claim or dispute to mediation with a mutually agreed upon mediator. They may also agree to conduct the mediation remotely through the Zoom platform. Any agreements reached in mediation shall be enforceable as settlement agreements in any court having jurisdiction thereof. The mediator fees associated with any such mediation will be split evenly between both parties.

8.3 Arbitration. If a claim or dispute cannot be resolved through good faith negotiations or mediation, Engineer and Client agree to resolve the dispute through binding arbitration, held in San Francisco County, California, administered by JAMS pursuant to its Comprehensive Arbitration Rules and Procedures, with a single arbitrator presiding over the matter. They may also agree to conduct the arbitration remotely through the JAMS Zoom platform. The arbitration award shall be in writing and may be entered by the San Francisco County Superior Court. The arbitrator fees and costs associated with any such arbitration will be split evenly between both parties.

8.4 Small Claims. If the amount in controversy in the dispute is within the jurisdictional limits of Small Claims Court set forth in the California Code of Civil Procedure, the dispute shall be submitted to Small Claims Court in San Francisco County, as an alternative to mediation and arbitration, and the hearings may be conducted through the Zoom platform upon request. Each party shall bear their own fees and costs associated with the Small Claims case.

8.5 Liens & Collections. Notwithstanding the foregoing, in the event Client fails to pay an invoice submitted by Engineer, Engineer reserves the right to refer the matter to collections and/or to file a lien against Client's property without first negotiating, mediating or arbitrating the dispute. In the event a matter is referred to collections, Client agrees to pay all incurred charges and interest fees as set forth by the collection agency selected to pursue payments.

8.6 Attorney Fees and Costs. In the event of a dispute arising under this agreement, the parties agree to bear their own attorney's fees and costs.

SECTION 9 – MISCELLANEOUS CONDITIONS

9.1 Governing Law. This Agreement shall be governed by the laws of the State of California.

9.2 Partial Invalidity. If any term, covenant, or condition of the Agreement or its application to any person or circumstance shall be held to be invalid or unenforceable, the remainder of this Agreement shall continue in full force and effect, and the parties agree that any invalid or unenforceable term, covenant, or condition shall be amended to the minimum extent required to make such term, covenant, or condition valid and enforceable.

9.3 Engineer Is An Independent Contractor. Engineer shall provide Services on the Project as a 1099 Independent Contractor and will not be an employee to the Client for any purposes. As an independent contractor, Engineer shall retain sole and absolute discretion in the manner and means of carrying out its activities and responsibilities under this Agreement. Nothing contained herein shall be deemed to create any association, partnership, joint venture, or principal/agent relationship between the parties to this Agreement. Nothing contained in this Agreement shall provide either party with the right, power, or authority, express or implied, to create any duty or obligation on behalf of the other party.

9.4 Survival. All express waivers, indemnifications, and limitations of liability included in this Agreement will survive its completion or termination for any reason.

9.5 Successors And Assigns; No Assignment. The Client and Engineer, respectively, bind themselves, their partners, successors, permitted assigns and legal representatives to the other party to this Agreement and to the partners, successors, permitted assigns, and legal representatives of such other party with respect to all covenants of this Agreement. Neither the Client nor Engineer shall assign this Agreement or any obligation, claim, right, or cause of action arising under this Agreement without the written consent of the other. The foregoing shall not be construed to limit the subrogation rights of either party's insurers.

9.6 Change in Ownership. Client agrees that the project is and shall continue to be owned by the Client, and if the project's ownership changes, the

Client shall waive any claim against Engineer, defend Engineer against any claim from a future owner, and indemnify Engineer for any loss, or damage to Engineer resulting from any claim brought by any party against Engineer related to any change in use of the project. Client agrees that this obligation shall survive the termination of this Agreement.

9.7 No Third Party Beneficiaries. Nothing contained in this Agreement shall create a contractual relationship with or a cause of action in favor of a third party against either the Client or Engineer.

9.8 Publicity. Engineer shall have the right to photograph the Project and to use the photographs in the promotion of professional services through publication, advertising, public relations, brochures, websites, or other marketing media. Engineer shall be given access to the completed Project to take photographs. Alternatively, the Engineer reserves the right to develop 3D renderings of the Project based on the Architectural Plans and use it for the promotion of professional services as they may seem fit.

9.9 Expiration. If this Agreement is not signed and returned to the Engineer within a reasonable timeframe, the Engineer reserves the right, at their sole discretion, to withdraw or modify the offer to perform the described services.

9.10 Defined Terms. Capitalized terms that are not defined in the Agreement shall have the same meaning as those in AIA Document A201–2017, General Conditions of the Contract for Construction.